

Court No. - 39

Case :- WRIT - C No. - 6421 of 2017

Petitioner :- Madan Pal

Respondent :- State Of U.P. And 2 Others

Counsel for Petitioner :- Prashant Sharma, Pankaj Sharma

Counsel for Respondent :- C.S.C., Pranjal Mehrotra

Hon'ble Dilip Gupta, J.

Hon'ble Siddhartha Varma, J.

Sri Pranjal Mehrotra, learned counsel appearing for the respondent-Power Corporation prays for and is granted five days time to ascertain whether a final assessment bill under Section 126 of the Electricity Supply Code 2003 has been issued or not.

Place this petition as fresh on 16 February 2017.

Order Date :- 10.2.2017

NSC

(Dilip Gupta, J.)

(Siddhartha Varma, J.)

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It transpires that on the basis of inspection carried out in the premises of the petitioner on 21 November 2016, a provisional assessment was done and thereafter a final assessment was done on 13 February 2017.

Though number of submissions have been made by learned counsel for the petitioner to assail the assessment order, Sri Pranjal Mehrotra, learned counsel for the respondents has submitted that the petitioner has a statutory alternative remedy of filing an appeal under Section 127 of the Electricity Act, 2003.

The petitioner does have a statutory alternative remedy of filing an appeal under Section 127 of the Electricity Act, 2003.

The Court, therefore, declines to entertain the petition. It is, accordingly, dismissed.

Order Date :- 16.2.2017

praveen.

(Dilip Gupta,J.)

(Siddhartha Varma,J.)